



8.021 - Domestic Violence And Neglect

District of Columbia law (see D.C. Code §22-3020.52[a]); D.C. Code §4-1321.02)

I. Policy Statement

Abuse is most often perpetrated by one person to another with whom they have an intimate or family relationship. While domestic violence of an adult is not considered a reportable offence, state law requires reporting suspected child sex abuse. Reporting suspected physical abuse or negligence of children is also encouraged.

II. Abuse of adult participants

In the HANDS participant Assessment screen under letter E (Environmental/Other Factors) probing questions, there is a question on abuse that must be asked at every certification, unless the safety of the participant would be at risk with a potential abuser present. If the participant or authorized representative answers “yes,” Local Agency Policy and Procedures must be followed.

The safety of the client must be the first priority. Some questions that can be asked include:

- “Do you have a safe place to go?”
- If client is residing in a safe place, ask, “Do you want to talk to someone about your abusive situation?”
- “Do you want a referral to a safe house, program, or hotline for abuse?”
- “Is it safe to give you information on abuse to read?”
 - In many cases, if the abuser sees materials on the subject, the safety of the client could be jeopardized.
 - If the client does not want the referral materials, WIC staff can offer to write down telephone numbers or addresses for the clients.

Staff must have information available on domestic violence service providers in their area. Domestic Violence resources for DC residents can be found on the Metropolitan Police Department’s web page at <https://mpdc.dc.gov/page/domestic-violence-resources>

III. Child Abuse

Everyone Has an Obligation to Report Child Sex Abuse

Under District of Columbia law (see D.C. Code §22-3020.52[a]), any person 18 or older who knows, or has reasonable cause to believe, that a child under the age of 16 is a victim of sexual abuse must immediately report such knowledge or belief to the police (**911**) or the DC Child and Family Services Agency (**202-671-7233**).

Reporting Child Abuse or Neglect

DC requires “mandated reporters” who interact with children up to age 16 on a regular basis to complete training on the signs of child abuse and neglect, and to make reports to the Child and Family Services Administration. See below for more information on mandated reporters.



How Can WIC Help?

Sometimes, people fear that reporting child abuse or neglect will destroy a family. The truth is that getting help can protect children from further harm and assist the family in overcoming problems.

Staff should be familiar with the following signs of child abuse and neglect:

- Infants excessive crying or with developmental delay
- Unexplained bruising, burns, or welts in different stages of healing
- Red flags with injuries:
 - Explanation of injury doesn't fit as to pattern, timing, or developmental ability of child
 - Explanation keeps changing
 - Delay in seeking medical care
 - Repeated injuries of any kind
- Malnutrition
- Poor hygiene, matted hair, dirty skin, or body odor

If staff have reason to suspect child abuse or neglect, they are encouraged to make a confidential phone call to the District hotline at **(202)-671-7233**.

A trained hotline worker will ask for:

- The name, address, age, and gender of the child.
- Who is caring for the child and whether other children live in the home.
- The nature and extent of the abuse or neglect, as you know it—and any previous abuse or neglect you know about.
- Any additional information that may be helpful.

Staff should not document making this phone call in the participant's HANDS record.

Resources to Learn More About Child Abuse and Reporting

DC's Child and Family Services Agency:

<https://cfsa.dc.gov/service/report-child-abuse-and-neglect>

Office of the Attorney General for the District of Columbia:

<https://oag.dc.gov/public-safety/reporting-child-abuse-what-know>

Stanford Medicine

<https://childabuse.stanford.edu/screening/signs.html>



Helpful information about mandated reporting in the District

Mandated Reporters Must Report All Child Abuse or Neglect

Mandatory reporting requirements help protect children from harmful situations and ensure that law enforcement officials and social workers can immediately begin investigating. In addition to the general obligation to report suspected sexual abuse, DC law also requires certain people who regularly work with children to be “mandated reporters” for suspected child abuse or neglect of any kind and for certain other injuries to children under the age of 18 (see below). This means they have a legal obligation to report any kind of suspected mistreatment of children to law enforcement and social services immediately and without delay.

Who Is a Mandated Reporter?

Mandated reporters are defined by law (see D.C. Code §4-1321.02) as people who must report suspicions of child physical or sexual abuse or neglect. These are people who work in certain professions where they come into regular close contact with children, such as:

- School officials, teachers, and athletic coaches;
- Department of Parks and Recreation employees;
- Public housing resident managers;
- Social service workers;
- Daycare workers;
- Persons involved in the care and treatment of patients, including: physicians, psychologists, medical examiners, dentists, chiropractors, registered nurses, and licensed practical nurses;
- Law-enforcement officers;
- Humane officer of any agency charged with the enforcement of animal cruelty laws;
- Child and Family Services Agency employees, agents and contractors;
- Human trafficking counselors as defined in D.C. Code §14-311(2);
- Domestic violence counselors as defined in D.C. Code §14-310(a)(2); and
- Mental health professionals as defined in D.C. Code §7-1201.01(11).

When and What Kind of Information Must Mandated Reports Provide to Authorities?

Mandated reporters must report when they know or suspect that a child whom they have encountered through their professional work:

- Is being neglected (his or her parent or guardian is not providing adequate housing, food, clothing, hygiene)
- Is being abused (physically or mentally)
- Is being exposed to domestic violence
- Is in imminent danger of being abused due to the abuse of a sibling or other child living in the same household
- Has a parent who is intoxicated, incarcerated, or suffering from a fault in their mental or physical capacity (i.e. drug use or mental illness) and is unable or unwilling to provide care
- Is being regularly exposed to illegal drug activity
- Has been or is in immediate danger of being the victim of sexual abuse or attempted sexual abuse; is a victim of human trafficking; or has been injured by a bullet, a knife or other sharp object by non-accidental means – regardless of whether the perpetrator was a family member, acquaintance, or stranger